

5. 9:00 AM CASE NUMBER: C23-03069
CASE NAME: THERESA SULLIVAN VS. MICHELLE COLETTI
***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS COMPLAINT**
FILED BY: COLETTI, MICHELLE
TENTATIVE RULING:

Hearing continued to March 20, 2026, at 9am. Service did not include the date, time and location of the motion as required by CCP 1010 and California Rules of Court, rule 3.1110(b).

6. 9:00 AM CASE NUMBER: C24-01590
CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY: CLANCY, TIMOTHY F.
TENTATIVE RULING:

Plaintiff Timothy Clancy's Motion for Leave to file a First Amended Complaint is granted. The proposed FAC attached to the motion is not deemed filed. Plaintiff must file and serve a stand-alone First Amended Complaint, in the form attached to the motion, no later than December 12, 2025.

Background

This case involves adjoining properties on opposite sides of Tassajara Creek. Plaintiff Timothy Clancy alleges that debris, fill material, and other man-made materials from Defendant Anthony Jurado's property were discharged into the creek, altered the flow of water, and caused erosion and damage to his property. The June 16, 2024 complaint includes causes of action for negligence, trespass, private and public nuisance, premises liability, and equitable indemnification, and seeks both damages and injunctive relief requiring cleanup and restoration of the creek. On September 13, 2024, Jurado filed a cross-complaint against Clancy asserting claims for indemnity, contribution, and declaratory relief, alleging that any damages Clancy sustained were caused primarily by Clancy or others and that Jurado is entitled to reimbursement or allocation if he is found liable.

On August 1, 2025, Plaintiff moved for leave to file a first amended complaint (FAC) to conform the pleading to proof. The proposed FAC adds three negligence claims premised on alleged violations of the California Water Code and Contra Costa Municipal Code, a declaratory relief claim, joins Paula Jurado as a co-owner defendant, supplements factual allegations with information obtained in discovery, and corrects clerical errors.

Legal Standard and Procedural Requirements for Leave to Amend

It is well-established under California law that leave to amend is to be granted liberally, to accomplish substantial justice for both parties. (CCP § 473(a); *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-89.) Indeed, "it is a rare case in which a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case." (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) "If the motion to amend is timely made and... granting...the

motion will not prejudice the opposing party, it is error to refuse permission to amend.” (*Morgan v. Sup. Ct.* (1959) 172 Cal.App.2d 527, 530.)

A party seeking to file an amended pleading must comply with California Rules of Court, rule 3.1324 which requires that the motion:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(Cal. R. Ct., rule 3.1324(a).)

Additionally, the accompanying declaration of counsel must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. R. Ct., rule 3.1324(b).)

Here, Plaintiff has adequately complied with the procedural requirements of rule 3.1324 and Defendant does not claim otherwise. The motion attaches a copy of the proposed FAC and identifies the additional allegations by page number and line. The motion is also supported by a declaration of Plaintiff's counsel which addresses the factors enumerated in rule 3.1324(b). The proposed amendment (1) adds causes of action for negligence for violations of the Contra Costa Municipal Code and the California Water Code; (2) adds a request for declaratory relief as to the parties' rights and obligations; (3) adds factual allegations to conform the pleading to discovery obtained to date; (4) adds Paula Jurado as a defendant because she is co-owner of the Jurado property; and (5) corrects minor clerical errors in the original complaint. (Jessica Garcia Decl., ¶¶ 2-11; and see tracked changes in Exhibit 2.)

Defendant Has Not Shown Prejudice Sufficient to Deny Leave to Amend, and the Merits Challenges Are Premature

Defendant claims prejudice if the complaint is amended to add Paula Jurado as a co-defendant. Defendant's opposition focuses on the fact that Plaintiff could have added Paula Jurado fourteen-months ago when the complaint was filed and the delay renders the amendment "burdensome" or "harassing."

"Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails." (*Higgins, supra*, Cal.App.3d at 564.) Defendant has not demonstrated prejudice sufficient to deny leave to amend. Delay alone is not grounds for denial of a motion to amend. (*Id.* at pp. 563-65.) Defendant claims no prejudice to his ability to prepare a defense, no loss of evidence, no expired discovery opportunities, and no impact on trial preparation. Only one deposition has occurred, discovery is

ongoing, and no trial date has been set. (See Garcia Decl. ¶ 7.) Moreover, the proposed FAC does not appear to allege new or independent wrongful conduct by Paula Jurado; she is being added solely in her capacity as a co-owner of the Jurado property. This does not expand the factual issues in dispute.

Defendant next argues the motion should be denied because the proposed new causes of action fail as a matter of law. The court declines to reach the merits at this stage. Such arguments are premature on a motion for leave to amend, and the preferred procedure is to allow the amended pleading to be filed and then allow the parties to test its legal sufficiency by demurrer or other appropriate motion. (*Kittredge Sports, supra*, 213 Cal.App.3d at 1047 ["the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer... or other appropriate proceedings"]; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 ["we believe that the better course of action would have been to allow Atkinson to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings."]; *Ruiz v. Santa Barbara Gas & Elec. Co.* (1912) 164 Cal. 188, 196 ["The usual and orderly way to test the sufficiency of an amended complaint is, in the first instance, by demurrer, after the same has been filed...."].)

Defendant is free to raise pleading challenges via demurrer or other appropriate motion once Plaintiff has filed the FAC.

Disposition

Plaintiff's motion for leave to amend is granted. The proposed FAC attached to the motion is not deemed filed. Plaintiff must file and serve a stand-alone First Amended Complaint, in the form attached to the motion, no later than December 12, 2025.

7. 9:00 AM CASE NUMBER: C25-00444
CASE NAME: KYANI-DEVAREU HARRIS VS. COUNTY OF CONTRA COSTA COURT
***HEARING ON MOTION IN RE: FOR TRANSFER**
FILED BY: HARRIS, KYANI-DEVAREU
TENTATIVE RULING:

Plaintiff Kyani Devareu Harris's Motion to Transfer is denied.

Plaintiff Kyani-Devareu Harris alleges that defendants Contra Costa County Department of Child Support Services and the Contra Costa County Superior Court violated his civil rights relating to parental and child-support obligations. Although the complaint is not clearly pled, he appears to challenge the validity of his paternity and child-support orders in *Contra Costa County v. Harris*, No. MSF12-00144, asserting that DCSS and the Superior Court lacked jurisdiction and acted unlawfully in obtaining or issuing those orders.

Plaintiff files the present motion seeking transfer of this action to the United States District Court for the Northern District of California under Code of Civil Procedure section 396, contending that the factual and legal issues presented exceed this Court's jurisdiction and are "beyond the capacity of this Court to adjudicate effectively." (Mtn. at pp. 1–2.)